

statement does not comply with that requirement. To the extent the embedded objections overlap with objections properly filed as separate documents and are material to the disposition of the motion, they are addressed below. To the extent they do not overlap and/or are not material, the Court declines to rule on them.

Defendant's Objection No.3 to the Blackburn Declaration: **OVERRULED**. The challenged testimony describes the physical components of the storm sewer system based on the declarant's personal inspection of the site. This is properly within the expertise of a licensed geotechnical engineer and does not constitute improper contract construction. (Evid. Code, § 720.)

Defendant's Objection No. 4 to the Blackburn Declaration: **OVERRULED**. The Court does not rely on the speculative portion of the challenged testimony regarding the Central Contra Costa Sanitary District. The remainder of the paragraph – that the absence of a defined channel in the flat area caused stormwater to spread, saturate the slope, and trigger the landslide – is a geotechnical causation opinion within the declarant's expertise and is not speculative. (Evid. Code, §§ 720, 803.)

All remaining objections are not material to the Court's disposition and are not ruled upon.

VII. Conclusion

For the foregoing reasons, Defendant's motion for summary judgment or, in the alternative summary adjudication, is **DENIED**.

5. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING ON SUMMARY MOTION
FILED BY: HAMMOND, DAVID
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on June 10, 2026. No further briefing will be required. No appearance is required on May 20, 2026.

6. 9:00 AM CASE NUMBER: C23-03200
CASE NAME: BRANDI SANFORD VS. PACIFIC STATES PETROLEUM, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION
FILED BY: SANFORD, BRANDI
TENTATIVE RULING:

Summary

Plaintiff Brandi Sanford moves for preliminary approval of the proposed class action settlement with defendant ARB, Inc. The motion is **granted** as set forth below. No appearance is required at the hearing on May 20, 2026.

Background and Settlement Terms

The original complaint was filed on December 18, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code by failing to pay minimum wages, failure to provide meal periods, failure to authorize rest periods, among others. On December 21,